TRACY HILLS

Great Living Grows Here

TRACY HILLS II COMMUNITY ASSOCIATION ARCHITECTURAL GUIDELINES

Adopted by the Board of Directors
9/16/2025

Section I: Introduction.

As community living relies on the mutual cooperation of all to be successful, Tracy Hills II Community Association ("**Association**") created these architectural guidelines ("**Architectural Guidelines**"). The goal of these Architectural Guidelines is to maintain the aesthetic beauty of the Community.

Prior to making any Improvements to your Residential Lot or Residence, you must submit a complete application for architectural approval to the Architectural Review Committee ("**ARC**"). After receiving written approval from the Board or ARC and complying with applicable requirements of the City of Tracy ("**City**") and other Governmental Agencies, you may install your Improvements or undertake your approved action. Please review these Architectural Guidelines prior to completing your application form to ensure your submittal is complete.

These Architectural Guidelines are subject to the Declaration of Covenants, Conditions and Restrictions and Establishment of Easements of Tracy Hills II ("**Declaration**") and the Bylaws of Tracy Hills II Community Association ("**Bylaws**"). The Association has the power to revise the rules, regulations, guidelines, policies and procedures set forth in these Architectural Guidelines from time to time. If you would like to contribute suggestions for these Architectural Guidelines, please submit them to the Community's management company ("**Management Company**") for consideration by the Association. In the event of any conflict between these Architectural Guidelines and the Declaration or the Bylaws, the provisions of the Declaration or the Bylaws (whichever applies) shall prevail.

It is recommended that you refer to Article 7 of the Declaration in conjunction with these Architectural Guidelines to insure a complete understanding of the submittal and review process of the Association. If you have questions regarding the review process, please contact the Management Company.

As you read through these Architectural Guidelines, you will encounter initially capitalized terms. Except as otherwise defined in these Architectural Guidelines and as the context otherwise requires, those initially capitalized terms have the same meanings given them in the Declaration.

If any of the provisions of these Architectural Guidelines are held to be invalid, the remainder of the provisions shall remain in full force and effect.

A. <u>Purpose; Application.</u>

These Architectural Guidelines are not intended to restrict individual creativity or personal preference, but rather to assure and preserve the value, desirability, attractiveness and architectural integrity of the Community. The purposes of these Architectural Guidelines are (1) to preserve the aesthetic character of the Community as established by the initial development, (2) to assure compatibility among Improvements, and (3) to preserve a high quality of appearance. The Architectural Guidelines are intended to both give specific design criteria to Owners, their consultants, or contractors in preparing drawings for architectural, landscape, and other Improvements (both for initial Improvements and for subsequent landscape and architectural Improvements after completion of initial residential construction), and to give the ARC a basis upon which to review the drawings submitted by Owners for compliance with the requirements of the Architectural Guidelines. The ARC reviews proposed Improvements for aesthetic purposes only. It is the Owner's responsibility to follow all applicable federal, state and local building codes. Any items or issues not addressed in the Governing Documents for this Community are matters left to the discretionary judgment of the ARC or its appointed architectural review consultant acting in good faith on behalf of the best interests of the Community as a whole.

These Architectural Guidelines do not apply to any Improvements installed by Declarant or Neighborhood Builders, and neither the Board nor the ARC shall have any rights of review or approval with respect thereto.

B. <u>Amendments to Architectural Guidelines.</u>

The Board of the Association may, at its discretion, amend these Architectural Guidelines from time to time as it deems necessary or desirable.

C. <u>Model Complexes.</u>

The construction features and landscaping provided by the Declarant at the model complexes should not be considered as an example of what may be constructed consistent with and under these Architectural Guidelines. The construction features and landscape materials located at the model complex were provided for sales and marketing purposes only. Some of the landscape and construction features at the model complex may not comply with these Architectural Guidelines and therefore may not be approved by the ARC when so submitted to the ARC in the context of a submittal of an application for ARC review ("**Application**," which also may be referred to herein and in other forms regarding the Community's design review as the "**Architectural Review Request Form**") to the ARC.

D. Architectural Review Committee.

If formed, the Architectural Review Committee (ARC) will consist of a minimum of 3 members and a maximum of 5 members. Additionally, 1 alternate member may be designated by the Board to act as a substitute on the ARC in the event of absence or disability of any member. If no ARC is formed by the Board of Directors, then the Board will conduct all architectural review. There will be references throughout these Architectural Guidelines to the ARC. If no ARC is formed, then such references will refer to the Board.

Section II: Architectural Review Classifications

Prior to the commencement of any addition, alteration, construction work or other Improvements of any type on any Residential Lot, you must first submit an application to the ARC for approval of such work. Unless specifically exempted under these Architectural Guidelines, you should submit an application for approval of all Improvements in accordance with the procedures set forth below. The following is intended to describe some of the Improvements that require approval by the ARC. Even though a proposed Improvement may not be listed below, you should submit an Application for your proposed Improvement, unless the particular Improvement is explicitly exempt from architectural review by the Declaration or these Architectural Guidelines.

A. <u>Exemptions; Improvements Not Requiring ARC Approval.</u>

Certain design elements within the Community generally do not require architectural review. However, if the ARC determines that a proposed Improvement exceeds the scope of the relevant exemption, the ARC may require an Application for approval of the Improvement to be submitted. The elements that generally do not require architectural review include:

1. Potted plants in decorative pots; limited to no more than two (2) in view from common area
2. Entryway patio tables and chairs that are in good repair (i.e. no fading, damage, rips, tears, etc.);
3. U.S. flag and decorative flags, subject to the discretion of the ARC as described in the Declaration and above;
4. Satellite dishes (must follow the general requirements within these Architectural Guidelines and Applicable Laws)
5. Retractable screen doors (must match the color of adjacent trim);
6. Window coverings including draperies, blinds, shades, interior shutters, etc.;
7. Any Improvements installed by Declarant;
8. Painting of Residence exterior, if repainted the same color as the original color;
9. Patio furniture in good condition;
10. Seasonal flower planting in rear yard; and
11. Exterior security cameras (including video doorbells).

B. Pre-Approved Improvements.

Certain architectural Improvements may be made to an Owner's property without obtaining prior written approval from the ARC. However, an Application must be filed with the Association notifying the Association of your intent to install "Pre-Approved" Improvements prior to the commencement of ANY work. Each Owner must ensure that all "Pre-Approved" Improvements conform to the guidelines listed for such "Pre-Approved" Improvement type, as detailed in these Architectural Guidelines prior to commencement of work. The following is a list of "Pre-Approved" Improvements:

1. Replacing garage doors, entry doors, or side yard gates to match the original door or gate installed by the Declarant. The replacement garage door, entry door, or side yard gate must match the original color, appearance and material of such door or gate;
2. Disappearing or invisible screen doors that match the existing trim of the Residence; and Playground equipment, greenhouses or storage sheds in the rear yard of the Residence that do not extend above the fence line of the rear or side yards.

C. Improvements Requiring Minor Review.

Other architectural elements will require minor review ("**Minor Review**") by the ARC. The only difference in the ARC review process under these Architectural Guidelines for a Minor Review versus a Full Review is a reduced submittal fee for such Minor Review, as set forth below. If the ARC determines that a proposed Improvement exceeds the scope of a Minor Review, the ARC may require that an Application be submitted for a full review as otherwise provided for under these Architectural Guidelines ("**Full Review**"). All Minor Review elements are still subject to all architectural standards and guidelines, as may be set forth in these Architectural Guidelines or otherwise. Minor Review elements include:

1. Painting of exterior of Residence, if repainted with a color different from the original color;
2. Storage sheds in the rear yard of the Residence that extend above the fence line in the rear or the side yards;
3. Post-mounted lighting fixtures exceeding fence height;
4. Exterior lighting;
5. House-attached flag poles;
6. Garden art, if visible from the street or common area;
7. Lamp posts;
8. Screen doors;
9. Shutters, if altered from original design;
10. Window awnings;
11. Gutters and downspouts that match or blend with the existing trim of the Residence and/or other structure;
12. Air conditioners;
13. Screen and security doors (other than retractable screen doors);
14. Exterior painting (unless painting is identical to the original paint palette); and
15. Garage door, entry door, or side yard gate replacements that do not match the original color, appearance and material of such door or gate.

D. Improvements Requiring Full Review.

All other modifications to the exterior of the Residence or to the Residential Lot, including without limitation installation of landscaping and modifications to the Residence, will require Full Review from the ARC. Please see the applicable fees for a Full Review, as provided below. Improvements requiring a Full Review include, without limitation:

1. Any new or modification to existing landscaping and hardscaping, excluding seasonal flower plantings;
2. All changes to existing and newly proposed walls and fences;
3. Any Improvement that encroaches upon or is placed upon slopes;
4. Built-in barbecues, fire pits and fire rings;
5. Pools, spas, ponds, fountains, or any type of water feature;
6. Patio covers, arbors, trellis and shade structures;

7. Solar panels;
8. ADU's & JADU's;
9. Detached Accessory Structures;
10. Free-standing structures, i.e. gazebo, playhouse, greenhouse, play structure (other than playground equipment, greenhouses or storage sheds in the rear yard of the Residence that extend above the fence line in the rear or the side yards and that are subject to a Minor Review);
11. Roofs; and
12. Any Improvement that is not exempt, Pre-Approved or subject to Minor Review under these Architectural Guidelines.

E. Landscape Theme / Plant Palette.

The landscape theme plays a significant role in defining and supporting the Community character. Consequently, Residents must comply with the water use requirements for the City of Tracy. Residents also must comply with all plant, design, and construction restrictions in the community's Fire Protection Plan which can be found in Exhibit A.

F. Failure to Obtain Approval.

Failure to obtain approval by the ARC regarding any Improvement may constitute a violation of the Declaration and may require modification or removal of unauthorized works of Improvement at your expense. In addition, a building or other permit may be required by the City Building Department, or other Governmental Agencies prior to the commencement of any work. Neither the Board, nor the ARC, nor the Association assumes any responsibility for failure to obtain such permits. Also, obtaining such permits does not waive the obligation to obtain any required approval from the ARC.

G. Submittal Fees.

The submittal fee for a Full Review by the ARC is $200, the submittal fee for a Minor Review is $175. The submittal fee should be made payable to Tracy Hills II Community Association. The submittal fees are non-refundable.

H. Deposit.

The Association requires a $250 deposit to pay for the cost to repair any damage to Association Property or Association Maintenance Areas caused by the Owner's work. If the Association determines after the completion of the Improvements and via the Notice of Completion that no damage was done to Association Property or Association Maintenance Areas, the deposit will be returned to the Owner. To the extent that any damage to Association Property or Association Maintenance Areas caused by the Owner's work exceeds the amount of such deposit, the Association shall retain all rights and remedies available to it under the Declaration, the Governing Documents, or at law.

Section III: Review and Approval Process

A. Extent of ARC Review.

1. The ARC approval of Plans and Specifications is required for all architectural modifications and Improvements, including without limitation landscape improvements and/or modifications. The ARC may condition its approval on such changes it deems appropriate and may require submission of additional Plans and Specifications or other information or materials prior to approving or disapproving Plans and Specifications. In the event of a conflict between these Architectural Guidelines and the Declaration, the Declaration shall control.

2. Upon approval, disapproval, or in the event the ARC requests clarification or additional information, all submissions shall be distributed as follows:

a. **Incomplete Plans and Specifications**: Shall be returned to the Owner.
b. **Approved Plans and Specifications:** Two approved Plans and Specifications shall be placed in the Association files and one approved set of Plans and Specifications shall be returned to the Owner.
c. Denied Plans: A copy of disapproved Plans and Specifications or those requiring clarification or additional information or conditional approval (requiring certain items to be corrected and re-submitted for approval) shall be returned to the Owner.

3. Review and approval of completed Improvements will be made by the ARC or its designated representatives once the Owner has notified the ARC of the completion of such Improvements by filling out and submitting a Notice of Completion Form (Form E) ("**Notice of Completion**"), the form of which is attached to these Architectural Guidelines. Photographs indicating the installation of all Improvements including equipment locations, retaining wall systems, and drain inlets are required as a part of each submittal of a Notice of Completion. If the subject Improvement results in a setback issue, a photograph of the setback issue clearly showing the measurement from the Improvement to the property line or setback is required to be included with the submission. The Owner shall provide the ARC with the Notice of Completion and all required materials promptly after the Improvement's completion, but in no event later than 30 days following completion.

   If it is determined that the Improvements were not installed in compliance with the Plans and Specifications approved by the ARC, the ARC shall notify the Owner in writing of such noncompliance within 30 days of the ARC's receipt of the Notice of Completion and all materials required to be submitted therewith. The Owner is required to remedy any such noncompliance within 30 days of Owner's receipt of the ARC's notice of noncompliance.

4. The ARC's review of Plans and Specifications only extends to confirming that the Plans and Specifications adhere to the Declaration and these Architectural Guidelines. By approving Plans and Specifications, neither the ARC, the Board, their designated representatives, agents or members, nor the Declarant, assume any liability or responsibility therefore, including without limitation for the architectural or engineering design of, or any defect in, any Improvement or structure constructed based upon the Owner's Plans and Specifications, irrespective of whether such Plans and Specifications include any modification suggested or required by the ARC or the Association.

B. Right of Entry/Local Permit/Variances.

After the ARC has approved the Owner's Plans and Specifications for aesthetic purposes, the Owner must contact local Governmental Agencies to confirm that he or she is in compliance with all building and zoning regulations currently in force. In the event modifications to the Plans and Specifications previously approved by the ARC are required to comply with a government regulation or Governmental Agency requirement, the Owner

shall submit to the ARC all modifications to the Plans and Specifications. The ARC shall have the right to review and impose further conditions on such modifications which are inconsistent with the requirements imposed by the City or other Governmental Agency or modifications to the Plans and Specifications that are made in response to the requirements imposed by the City or Other Governmental Agency.

The Association may authorize variances from compliance with these Architectural Guidelines and the Declaration, including, without limitation, restrictions upon height, size, floor area or placement of structures, or similar restrictions, when circumstances such as topography, natural obstructions, hardship, aesthetic or environmental considerations may require such variances. All variance requests must be made in writing by submitting the Appeal Request (Form F), the form of which is attached to these Architectural Guidelines and are subject to the written approval of the Association. Such variances must be evidenced in writing, be signed by at least 2 members of the Board, be approved at a duly called regular meeting of the Association and shall become effective upon such execution. The granting of such variance shall not operate to waive any of the terms and provisions of these Architectural Guidelines or the Declaration for any purpose except as to the particular Residential Lot and particular provision of these Architectural Guidelines and the Declaration covered by the variance, nor shall it affect in any way the Owner's obligation to comply with all Applicable Laws affecting its use of the Residential Lot, including, without limitation, zoning ordinances and lot setback lines or requirements imposed by the City or any other Governmental Agencies. The fact that Improvements are already installed, without ARC approval or in deviation from approved Plans and Specifications, is not an appropriate basis for a request for variance and will not be a basis for approval. In such situations, the review process associated with such Improvements will be conducted as if the Improvements had not been installed.

C. <u>Inspection and Correction of Work.</u>

1. **Right of Inspection During Course of Construction.** The ARC or its duly authorized representative may enter onto any Residential Lot during the course of construction or installation of any Improvements for the purpose of inspecting such construction and/or installation to determine whether it was performed in substantial compliance with the approved Plans and Specifications, the contractor's guidelines, as may be promulgated by the ARC or the Association, and Applicable Laws. If the ARC determines that such construction and/or installation is not being done in substantial compliance with the approved Plans and Specifications, it shall notify the Owner of such non-compliance. If the ARC determines that such construction and/or installation is not being done in substantial compliance with the guidelines or Applicable Laws, work may be stopped by the ARC and/or the City or other Governmental Agency until the work complies with the applicable standards and Applicable Laws. Copies of inspection sign-off(s) by the City shall be provided to the ARC or the Management Company within 48 hours of such request by the ARC or Association.

2. **Notice of Completion.** Upon the completion of any construction or reconstruction or the alteration or refinishing of any Improvements, or upon the completion of any other work for which approved Plans and Specifications are required, the Owner shall give written notice of completion to the ARC using the Notice of Completion Form (Form E) attached to these Architectural Guidelines and incorporated herein.

3. **Inspection.** Within 30 days after the ARC's receipt of the applicable Notice of Completion, the ARC, or its duly authorized representative, shall have the right to enter onto the Residential Lot, as provided in Section 9.7 of the Declaration, to inspect such Improvement to determine whether it was constructed, reconstructed, altered or refinished to substantial compliance with the approved Plans and Specifications. If the ARC finds that such construction, reconstruction, alteration or refinishing was not done in substantial compliance with the approved Plans and Specifications, it shall notify the Owner in writing of such non-compliance within 30 days after the ARC's receipt of the applicable Notice of Completion, specifying particulars of non-compliance, and shall require the Owner to remedy such non-compliance.

4. **Non-Compliance.** If the Owner fails to remedy non-compliance with approved Plans and Specifications within 30 days from the date of such notification, the Board, after affording such Owner Notice and Hearing, shall determine whether

there is a non-compliance, and if so, the nature thereof and the estimated cost of correcting or removing the same. If non-compliance exists, the Board shall require the Owner to remedy or remove the same within a period of not more than 30 days from the date of the Board ruling. If the Owner does not comply with the Board ruling within such period or within any extension of such period as the Board, in its discretion, may grant, the Association, at its option, may either remove the non-complying Improvement or remedy the non-compliance, and the Owner shall reimburse the Association for all costs and expenses incurred in connection therewith, including without limitation attorneys' fees and costs, upon demand. If such expenses are not promptly repaid by the Owner to the Association, the Board may, after Notice and Hearing, levy a Compliance Assessment against such Owner for reimbursement.

5. **Review Oversight.** Any architectural review approval involving an oversight of the Declaration or architectural review policy does not constitute a waiver of that rule and therefore, must be corrected upon notice by the Board.

6. **Review Only Applicable to Specific Submittal**. Any approval by the ARC or Board of any Plans and Specifications shall only apply to such specific Improvements set forth in such approved Plans and Specifications and shall not act as an estoppel, waiver or any other limitation on the ARC or Board regarding any future review of a proposed Improvement, irrespective of the asserted similarity of such Improvement to an Improvement for which the ARC or Board previously approved Plans and Specifications.

7. **Variance Process.** The Board may authorize variances from compliance with any of the architectural provisions set forth herein, including, without limitation, restrictions upon height, size, floor area or placement of Improvements or other similar restrictions, when circumstances such as topography, natural obstructions, aesthetic or environmental considerations may require. Such variances must be evidenced in writing, be signed by at least 2 members of the Board, be approved at a duly called regular meeting of the Association and shall become effective upon such execution. If such variances are granted, no violation of the requirements set forth herein or in the Declaration shall be deemed to have occurred with respect to the matter for which the variance was granted. The granting of such variance shall not operate to waive any of the terms and provisions of these Architectural Guidelines or the Declaration for any purpose except as to the particular Residential Lot and particular provision of these Architectural Guidelines and the Declaration covered by the variance, nor shall it affect in any way the Owner's obligation to comply with all Applicable Laws affecting its use of the Residential Lot, including, without limitation, zoning ordinances and lot setback lines or requirements imposed by the City or any other Governmental Agencies.

D. Review and Approval Process.

Construction of any Improvement, including landscaping, may not begin until the ARC has approved Plans and Specifications depicting the proposed Improvement. Initial landscape Improvement plan submittals must be submitted within 90 days from close of escrow and completed within 180 days from close of escrow.

1. Other than initial landscape Improvements, Owner shall substantially commence all other construction or other modifications within 12 months from the date of approval by the ARC and such construction or other modifications shall be completed within 6 months of commencement.

2. In accordance with the Declaration, in the event of a failure to commence construction or other modifications within 12 months of issuance of the ARC's approval and thereafter diligently pursue the same to completion, the approval shall be automatically revoked, and a new approval must be obtained under the process set forth in these Architectural Guidelines before work can commence.

3. The ARC shall not review Plans and Specifications for any Improvements on a Residential Lot until escrow has closed on such Residential Lot. The ARC has established a non-refundable architectural review fee, which is outlined on the Submittal Application Checklist and set forth above with respect to a Full Review and Minor Review. Additionally, the ARC has established a security deposit to be refunded (subject to offset as provided below) after the Notice of Completion is approved by the ARC.

4. The specified security deposit must accompany every submittal of Plans and Specifications for ARC review. The purpose of the deposit is to ensure the timely completion of the proposed Improvements and to guarantee that the Association is reimbursed for any damage to the Association Property, and/or Public Property maintained by the Association, associated with the construction of an Owner's Improvements. Funds may be withheld and offset from any return of the security deposit for any of the following reasons: 1) to repair Association Property or Association Maintenance Area damaged as a result of the Owner's construction; 2) to pay fines assessed against an Owner's account levied in response to a violation of the Declaration; or 3) to pay for legal fees associated with a violation of the Declaration by an Owner. All Plans and Specifications and any required forms should be sent to the Management Company for ARC review.

5. The ARC has 45 days from the receipt of the submittal of a "complete" (as determined by the ARC) Application submittal package, including a complete set of Plans and Specifications and any required forms, to approve or deny the submittal. The applying Owner should obtain a dated written receipt for all Plans and Specifications submitted. In order to establish the date of the delivery to the ARC, Plans and Specifications and any required forms can be delivered by certified or registered mail with return receipt requested, or a reputable overnight delivery service with package tracking. Incomplete submittals will be denied. In the event the Board or ARC fails to approve or disapprove the complete Application within 45 days after all documents and information requested by the Board or ARC have been received by it, the Owner requesting said approval may submit a written notice to the Board advising the same of its failure to act. If the Board or ARC fails to approve or disapprove any such Application within 15 days after the receipt of said notice from such Owner, said Application shall be deemed approved, provided that any Improvements conform to all conditions and restrictions contained in the Declaration and these Architectural Guidelines and are aesthetically harmonious with similar structures erected within the Community. The ARC may deny a complete Application for reasons set forth in the Declaration or these Architectural Guidelines.

6. After ARC review and approval of an Application, the Plans and Specifications may need to be approved by the City. If the City requires the ARC-approved Plans and Specifications to be changed, then the modified Plans and Specifications shall be resubmitted to the ARC, as provided in these Architectural Guidelines, for review of the ARC. No construction of Improvements shall commence until ARC approval of such Plans and Specifications. To the extent the ARC again requests modifications to the City-approved Plans and Specifications that requires further review and approval by the City, no construction of Improvements shall commence until the ARC approves City-approved Plans and Specifications.

7. When construction is completed, a "Notice of Completion" and photographs of the completed Improvements must be delivered to the ARC for its use in determining if the Improvements were constructed according to the ARC-approved Plans and Specifications; and for determining how much of the security deposit, if any, should be refunded. A representative of the ARC may also inspect the Improvements. An appointment will be made at a mutually convenient time for any such inspection of the completed Improvements, as provided above in Section III.C. (Inspection and Correction of Work).

8. Construction of Improvements must not unreasonably disturb neighbors. The use of a neighbor's yard for construction access is not permitted unless such neighbor has given written consent of such access that must include a description of the access area. The use of Association Property for construction access is not permitted, unless authorized by the Association and the applying Owner enters into a written agreement in form and substance satisfactory to the Association indemnifying the Association for damage, claims and losses associated therewith and posts a construction deposit for repairs of any damage to Association Property. Any authorization for construction access by the Association must be in writing, signed by an authorized representative of the Association and must include a specific description of the access area. Construction materials are not permitted to be stored on the neighborhood streets. Additionally, construction and/or landscape materials are not allowed to be stored on an Owner's driveway for more than 7 consecutive days.

9. Approval of Improvements and the associated Application and Plans and Specifications by the ARC is for aesthetic purposes only. It is the applying Owner's responsibility to see that all Applicable Laws, including without limitation,

building codes, are followed. It is the applying Owner's sole responsibility to obtain all permits and inspections that may be required by a Governmental Agency before commencing construction.

10. The ARC's review of Plans and Specifications only extends to confirming that the Plans and Specifications adhere to the Declaration and these Architectural Guidelines. By approving Plans and Specifications, neither the ARC, the Board of Directors, their designated representatives, agents or members, nor the Declarant, assume any liability or responsibility therefore, including without limitation for the architectural or engineering design of, or any defect in, any Improvement or structure constructed based upon the Owner's Plans and Specifications, irrespective of whether such Plans and Specifications include any modification suggested or required by the ARC or the Association.

11. Proposed Improvement Plans and Specifications must be clear, complete and prepared in accordance with applicable building codes and these Architectural Guidelines. All plans for Improvements, including without limitation, all exterior hardscape and landscape Improvements, must be submitted to the ARC for review and approval, as provided for in these Architectural Guidelines.

12. All Minor and Major Review Applications and packages submitted to the ARC must be submitted by an Owner to the Management Company and must contain the following items, the forms of which are attached to these Architectural Guidelines:

    A. Architectural Review Application Checklist (Form B)
    B. Architectural Review Request Form (Form C)
    C. One copy of the Neighbor Notification Form (Form D). It is the intent of the ARC that the Owner's neighbors be notified of any Improvements which may impact the use and enjoyment of such neighbor's property. The following applicable neighbors of an Owner seeking ARC approval for Improvements should be notified:

Adjacent Neighbor:	means all neighbors with adjoining property lines to the Owner.
Facing Neighbor:	means the 3 neighbors most directly across the street from the Owner.
Impacted Neighbor:	means all neighbors in the immediate surrounding area which would be affected by the construction of an Improvement.

    Owners should show the drawings illustrating the proposed Improvements that are a part of the Plans and Specifications to neighbors and request their signatures on the Neighbor Notification Statement. **Signature of this form does not constitute neighbor approval of the Improvements, nor does it require the ARC to so approve any such Improvements or associated Plans or Specifications**. Should any neighbor be unavailable or decline to sign the form or if the Facing, Adjacent or Impacted Neighbor is the Declarant or a Guest Builder, such circumstances must be noted by the Owner on the Neighbor Notification Statement.

    D. 1 complete set of proposed Improvement Plans and Specifications. Owners must specifically depict all property lines, easements, all utilities and any Improvements, including noting any Improvements that vary from these Architectural Guidelines. Improvements not depicted on Plans and Specifications submitted to the ARC are not approved, regardless of any approval by the ARC of Plans and Specifications submitted by such Owner. Improvements located on property other than Owner's Lot, including without limitation Association Property or another Owner's Lot, are not approved, regardless of whether such Improvements are indicated or included on the Plans and Specifications approved by the ARC. Erroneous information and/or depictions included in an Application may render any approval thereof null and void. Approval of Plans and Specifications by the ARC does not mean approval of any Improvements indicated or included therein that are not in compliance with these Architectural Guidelines, unless specifically noted in the approval of the ARC.
    E. Applicable fees and deposits.
    F. Photographs of areas to be improved.
    G. Signature of plan preparer that he/she has read and understands these Architectural Guidelines.

H. 1 signed copy of the Water Quality Management Best Management Practice Guidelines (Form G).
I. Any other materials required by the Association or the ARC in accordance with these Architectural Guidelines including evidence satisfactory to the Board that the proposed Improvements are acceptable under the terms of the Declaration and these Architectural Guidelines, and comply with all Applicable Laws and, as applicable, building code requirements.

13. The Management Company shall review the Application package for completeness. Applications, including without limitation included Plans and Specifications, must meet the submission standards as indicated in this Section. The ARC recommends that each Owner retain the services of a licensed professional to prepare all Improvement drawings, including without limitation Plans and Specifications. Complete Application packages are forwarded to the ARC. The ARC will not review incomplete Application submissions. Incomplete Application submissions will be returned to the applying Owner along with a copy of the Architectural Review Application Checklist noting the areas of deficiency. The 45 day review period for Applications will not commence until the ARC has acknowledged receipt of a complete Application submittal.

14. **Resubmittal Fees**: After the initial submission and 2 revisions submitted by such Owner in response to ARC comments, subsequent Application submissions, or portions thereof, for additional ARC review will require payments of an additional non-refundable submittal fees equal to the initial submittal fees payable to the Association. The ARC may also require an additional fee for any submission (whether for initial or subsequent approval) if changes are made to Plans and Specifications previously approved by the ARC.

15. **Appeal**: In the event the Plans and Specifications submitted to the ARC are disapproved, an Owner may, as provided in the Declaration, appeal in writing to the Board no later than 30 days following the final decision of disapproval by the ARC. Within 30 days following receipt of the request for appeal, the Board shall render a written decision in accordance with California Civil Code Section 4765. The decision of the Board shall be binding and final. Only the Owner who submitted the initial Application that was disapproved by the ARC may appeal such decision of the ARC

E. Procedures for Applications – Submittal Requirements.

The following is a step-by-step process of the ARC review and submission procedure:

Step 1

Owner reviews Architectural Guidelines, Sample Landscape Plan Submittal Document (attached hereto as Exhibit A) and prepares or has prepared 1 complete set of Plans and Specifications, including:

A. Owner's name, date, address and Lot number, north arrow, scale of plans (1/8" = 1'-0" or 1/4" = 1'-0")
B. Designer/contractor's name, address, and phone numbers.
C. Designer/contractor's signature confirming that he/she/they have read these Architectural Guidelines and understand the requirements set forth herein.
D. Photographs and dimensioned details as needed to describe the proposed Improvements, including a cross-section of any patio cover, description of play structures, and a photograph of any light fixture specifying the height, material, color and appearance.
E. Photographs of front and rear elevations of the subject Residence (architectural elevations) and photographs of the subject Residence from each direction.

The speed of ARC review is based, in part, on the completeness of information that the applying Owner provides in the submitted Plans and Specifications. Inadequate information will cause the ARC to deny the application.

Step 2

A. Owner completes the Architectural Review Application Checklist (Form B) and the Architectural Review Request (Form C).

Step 3

A. Owner submits all required forms, plans not otherwise previously submitted with the Plans and Specifications, and photos to the Management Company for delivery to the ARC or its designated reviewer.

B. Each submittal for architecture or landscape Improvements must be submitted separately with its own submittal Application, including documents and associated fees.

C. The ARC shall not review any Application, including Plans and Specifications for any Improvements on a Residential Lot, until escrow has closed on such Residential Lot.

Step 4

A. ARC reviews the Application for completeness and consistency with these Architectural Guidelines. Incomplete Application submittals are rejected. Application submittals without the submittal of applicable fees or deposits are not approved and are returned to the Owner.

B. The ARC approves or denies the Application submittal. Approval by the ARC may be given with conditions, the satisfaction of which are required for final approval, which must be satisfied prior to the commencement of construction of the referenced Improvements.

Step 5

Owner reviews the ARC's comments and conditions, if any, and notifies the ARC if there are any questions.

Step 6

If the ARC has granted final approval of the Application and Owner understands the ARC's comments, Owner submits the approved Plans and Specifications to the City for approval, if required, and obtains any necessary permits.

Step 7

If the City requires the ARC-approved Plans and Specifications to be changed, then the modified Plans and Specifications shall be resubmitted to the ARC, as provided in these Architectural Guidelines, for review by the ARC. To the extent the ARC again requests modifications to the City-approved Plans and Specifications that requires further review and approval by the City, no construction of Improvements shall commence until the ARC approves City-approved Plans and Specifications.

Step 8

All construction must be consistent with the approved Plans and Specifications. All deviations from ARC-approved Plans and Specifications must be reviewed and approved in writing by the ARC prior to construction thereof.

Step 9

The ARC reviews the photographs provided by Owner with the Notice of Completion and determines if the Improvements were constructed according to the ARC-approved Plans and Specifications and then, following approval of the Notice of Completion, refunds the construction deposit, minus any costs to repair Association Property that was damaged during the construction and any assessments of fines outstanding against an Owner's account associated with the construction and legal fees, if any. Construction of any Improvement prior to receipt of ARC approval or deviation from approved Plans and Specifications is a violation of the Declaration and these Architectural Guidelines, and in such event the Owner shall have the obligations and the Board shall the remedies set forth in Section III.C. (Inspection and Correction of Work) of these Architectural Guidelines.

F. **Important Notes.**

- Refer to the "*New Owner Timeline*" to assist you with deadline dates.
- Read these Architectural Review Guidelines carefully before submitting your Application and Plans and Specifications.
- The ARC may place conditions and/or limitations on your approval, which must be satisfied prior to commencing construction of any Improvements and followed.

G. **Architectural Improvements / Submittal Documents and Plans and Specifications.**

1. Plans and Specifications: Must graphically illustrate (at not less than 1/8" = 1'- 0") all building/architectural existing and proposed Improvements to Residences within the Community, to include, but not limited to, the following:
2. Include appropriate site plan, floor plan(s) and roof plan.
3. Clearly indicate setbacks from the property line to building Improvements.
4. Fully dimension existing and proposed plans.
5. Site Photographs: Include site photos of the front and rear elevations of the Residence and Residential Lot; of the rear yard and each side yard; and of all surrounding conditions adjacent to the location of the proposed Improvements, including neighboring Residential Lots and Association Property. Photos must be in color and may be generated from a computer, but must be at least 4 inches x 6 inches in size.
6. Plot Plan: (at not less than 1/8" = 1'-0") Owner has the obligation to ensure that the submitted plot plan does all of the following. Any ARC approval of an Application or Plans and Specifications given without the following information depicted on the Plans and Specifications is null and void:
7. Shows all lot lines accurately. Locates and identifies all existing and proposed buildings, structures, fences, walls, pilasters, gates, sidewalks and other Improvements. Indicate all required setbacks, easements, streets, or rights of way and top and toe of slopes.
8. Shows all dimensions of work to be considered; shows distances between existing and proposed work and privacy wall, perimeter wall or property lines, setback lines and slopes.
9. Shows all existing and proposed easements located upon Owner's Residential Lot.
10. Show, by spot elevations, all existing vertical gradients.
11. Elevations: Depict elevations of all proposed architectural Improvements in relationship to the existing building, to include, but not limited to, the following:
12. Heights of any proposed Improvements (may not exceed the height of existing structure).
13. Exterior finishes and materials.
14. Architectural Details: Provide all architectural details of the exterior Residence fenestration. Details must match existing or be architecturally compatible based on the architectural style.
15. Drawings shall include specifications of materials, sizes, color and finishes. For alterations or additions, note if finish and color is to match existing finish and color. Provide samples of all proposed materials, finishes and colors.

H. **Landscape Site Improvements / Submittal Documents and Plans and Specifications.**

1. **Site Photographs:** Include site photos of the front and rear elevations of the Residence and Residential Lot; of the rear yard and each side yard; and of all surrounding conditions adjacent to the location of the proposed Improvements, including neighboring Residential Lots and Association Property. Photos must be in color and may be generated from a computer, but must be at least 4 inches x 6 inches in size.

2. **Landscape Construction Plans and Design Details: (at not less than 1/8" = 1'- 0")**

a. The plan must graphically illustrate all hardscape and other Improvements including but not limited to; fences, walls, pilasters, gates, trellises, arbors, patio covers, spas, barbecues, fireplaces, fire pits, fountains, garden art, statuary, mechanical equipment and storage enclosures.
b. Design details/elevations of all vertical hardscape Improvements in the side and rear yard. Include specifications of materials, sizes, heights, color and finishes.
c. Indicate the height for all hardscape features in relation to the adjacent ground elevations (existing grade), and the finish floor elevation.
d. List all hardscape materials, colors and finishes.
e. Clearly indicate proposed setbacks from the perimeter walls and adjoining Residences.
f. Locate and identify all existing and new drain inlets. Note on the plan that all new inlets shall be connected to the existing system provided by the Declarant.
g. Provide a complete written description of the proposed irrigation system on the plan or provide a separate irrigation plan, including location of new drains and drain pipe routing.

h. Locate and identify all trees, shrubs, groundcovers, and their proposed installed plant container size. A separate planting plan is encouraged but not required. Include the following note on the plan: "All existing Association Property landscape shall be protected in place during all phases of construction."
i. Locate and identify all proposed light fixtures. Include the following note on the plan: “No exterior lighting shall be placed or maintained upon any Residential Lot so as to cause an unreasonable glare or illumination upon property outside such Residential Lot.”

I. **Construction Drawings & Specifications.**

Construction drawings and specifications shall be required per local agency requirements. ARC review and approval of design development shall not be considered to act in lieu of required construction/building permit drawings. Any revisions required by any Governmental Agencies that conflict with these Architectural Guidelines shall be resubmitted to the ARC for review and approval. Owner is not required to submit working drawings to the ARC; however, it is the Owner’s responsibility that construction drawings and final implementation of Improvements are in conformance with ARC-approved design development plans. Construction drawings shall be resubmitted to the ARC if they deviate from the ARC-approved preliminary plans.

J. **Conditions of Approval.**

Each Owner must comply with the “General Conditions of Approval” contained in Section IV of these Architectural Guidelines in connection with the construction and maintenance of all Improvements approved by the ARC for such Owner’s Residential Lot.

Section IV: Architectural Guidelines

A. Architecture.

All architectural Improvements must be compatible with the original architecture of the Community. Below are guidelines for building alterations, building materials, colors, and forms which are expressive of the Community's architectural character, and which will be used by the ARC in reviewing Plans and Specifications for compatibility with the original design of the Community and enforcing these Architectural Guidelines.

COMPLIANCE WITH THESE ARCHITECTURAL GUIDELINES SHALL NOT BE IN LIEU OF ARC APPROVAL. RATHER, THESE ARCHITECTURAL GUIDELINES ARE INTENDED TO ASSIST THE OWNER IN THE PREPARATION OF PLANS THAT ARE MORE LIKELY TO BE APPROVED. ULTIMATELY, COMPLIANCE WITH THESE ARCHITECTURAL GUIDELINES SHALL BE DETERMINED BY THE ARC AS PART OF THE REVIEW AND APPROVAL PROCESS. THESE ARCHITECTURAL GUIDELINES MAY BE MODIFIED FROM TIME TO TIME AS SET FORTH IN THE DECLARATION.

OWNER IS RESPONSIBLE TO MAKE SURE THE CURRENT ADOPTED ARCHITECTURAL GUIDELINES ARE USED IN PREPARING PLANS AND SPECIFICATIONS.

1. Exterior Improvements.

Improvements including, but not limited to, any of the following, are not permitted:

a. Roof modifications (except as applicable to room additions)
b. Accessory buildings in the front yard

2. Garages and Garage Doors.

a. Additional garages may not be added.
b. Replacements or changes to garage doors must match the design, materials, finish and color of the existing garage door or painted or stained a color that is compatible with the exterior color scheme of the Residence.
c. Treatments that draw attention to the garage door, such as mirrored glass or ornate decoration on or around the garage door, are not permitted.
d. Garage at all times shall be maintained in such a manner to be capable of accommodating full sized automobiles to the capacity to which it was intended.

3. Detached Accessory Structures:

a. Accessory structures are not permitted in the front yard area.
b. An accessory structure shall not exceed one story or 14 feet in height or occupy more than 25% of a required rear yard plus 55% of the buildable area.
c. Must be at least 5 feet from any residential house and 3 feet from the side or rear property line.
d. Swimming pools, spas, and jacuzzis must be at least 3 feet from the side or rear property line.
e. Ground mounted air conditioners, swimming pool pumps, heaters, filters, and fans may be located in a required side or rear yard provided that such structures or equipment do not exceed a height of 54 inches measured from the base of the unit. Such equipment shall be screened from adjacent property or street by a solid fence or wall.
f. Accessory structures and guest houses may only be permitted on a Residential Lot on which there is one owner-occupied primary dwelling.

4. **ADU's**

The purpose of this section is to expand the variety of housing opportunities within the Lot, is available. In doing so, it is the intent of these regulations to ensure that Casita units are located in areas where services are adequate to support them and to ensure that Casita units are maintained as a compatible and integral part of the community in which they are located.

Casita units shall comply with all development standards of the City. Casita's must conform to the standards set below:

a. An ADU may only be permitted on a Residential Lot on which there is one owner occupied single-family detached dwelling (primary dwelling).
b. No more than one ADU may be permitted on any parcel or lot.
c. ADU shall have adequate water supply pursuant to specifications of the Building and Safety Code and the City of Tracy.
d. The ADU may be either attached or detached from the primary dwelling.
e. The total area of floor space for either an attached or detached ADU shall not exceed 1,200 square feet.
f. The driveway serving the primary dwelling must be used to serve the ADU unit. Separate utility meters serving the ADU shall not be permitted.
g. ADU's attached to the primary dwelling unit shall comply with the development standards for the Specific Plan.
h. Detached ADU's shall not exceed one story or 14 feet in height and may not occupy more than 25% of the required rear yard plus 55% of the buildable area provided the total building coverage allowed in the Community is not exceeded.
i. Detached ADU's shall not be located within any side or rear yard setback area.
j. The ADU shall be architecturally compatible with the design of the main dwelling and shall incorporate the same colors and materials of the primary unit.
k. The ADU must have a bathroom and/ or kitchen plumbing and fixtures.
l. Detached Casita ADU's must be a minimum of 10 feet from any front property line, and are not allowed in any side or rear setback area.

5. **Exterior Building Wall Materials.**

a. Changes and/or modifications to a Residence's exterior wall and veneer finishes, materials and colors are not permitted.
b. Repair and maintenance to a Residence's exterior walls must match existing exterior walls.

6. **Windows and Doors.**

a. The size, location, material, and color of new or replacement windows and doors shall be compatible with the windows and doors of the existing Residence, with regard to style, frame, glazing color, divided lights, and other structural and design components.
b. Glass tinting or shading must be compatible with the existing treatment. Mirrored glass, reflective glass film and plastic roll-up shades are not permitted.
c. New accent windows and doors, such as greenhouse windows or French doors, must be compatible with the color and design of the existing Residence.
d. Decorative front doors must be compatible with the color and design of the existing Residence.

7. **Skylights.**

a. Skylights must be designed as an integral part of the roof. The form, location and color must be compatible with and relate to the Residence.
b. Owners must use bronze-color glass (white or clear glass are not permitted).
c. Bubble skylights are not permitted.

8. Walls, General / Courtyard Walls / Wall Extensions / Fences / Gates

Proposed alterations or additions to existing walls must be approved, in writing, by the ARC prior to work commencing. There shall be no attachments, of any kind, to any property line wall. However, an exception may, subject to the review and discretion of the ARC, be allowed for the installation of an interior mounted trellis. All replacement walls must match the dimensions, material, color, etc. as was originally installed by the Declarant. Any deviation must have prior written approval from the ARC. All fences must be at least 4' from the inside edge of sidewalks on corner lots. In addition, the fence cannot extend past the face of the front of the residence.

a. **Front Sidewall Extensions**: Wall extensions will be considered by the ARC on a case-by-case basis, depending on the location of the wall as it relates to the adjacent neighbor and how well it will complement the overall aesthetics of the property and neighborhood as a whole. However, no fence can extend further than the front of the house.

b. **Wall Waterproofing**: All walls must be waterproofed with "Thoroseal" or its equivalent when soil is mounded against wall above the original grade as a landscaping feature. The same requirement applies when raised planters are constructed against walls.

c. **Gates**: All proposed gates will be considered by the ARC on a case-by-case basis, depending on the overall design and how well the gate will complement the intended aesthetic theme of the property and neighborhood as a whole. Gates generally shall not exceed the height of the wall or approved metal fence surrounding it. If the gate has an arch (or design), the peak of the arch (or design) can be a maximum of 6 inches above the wall or approved metal fence. These gates typically lead to the rear yard and do not include an archway. All gates shall generally be metal or wrought iron. In order to receive ARC approval, a picture or sketch is required including the pattern, color and dimensions of the proposed gate. The color shall match the color of the stucco, or the house trim. Black may only be used on metal or wrought iron. The ARC may consider a gate material other than metal or wrought iron. Gate privacy screens must be made of steel (metal) mesh painted to match the color of the gate (this provision is not intended to apply to security screen doors). Exceptions will be considered by the ARC for lots that have an existing archway leading to a courtyard. Courtyard archway gates may use decorative privacy glass, or decorative privacy Plexiglas, treated to prevent discoloration.

9. Screen Doors.

a. All screen doors must be approved by the ARC prior to installation, with the exception of a retractable screen door (frame must match trim color of the Residence). Screen doors are not allowed to be installed on the front or main entry of the Residence, unless it is a retractable type screen door. Screen doors are allowed on the side garage entry door. All screen doors must be compatible with the trim color of the Residence. Owner shall include a color photograph and the screen door specifications in the Application package.

10. Window Coverings and Treatments.

a. Window coverings may consist of curtains, draperies, blinds, shades or shutters. Aluminum foils or other reflective materials, bed sheets, papers, and the like may not be applied to windows, at any time.
b. Exterior wrought iron or metal bars are prohibited.

c. Drapes, curtains, shutters, blinds and other window materials must be kept in good condition. The Association can compel an Owner to replace shabby and torn materials visible from the exterior of the Residence.

11. Awnings and Shades.

a. Awnings and exterior shades may be approved if they reinforce the architectural style and design of the existing Residence. Actual material samples are required for ARC review (reviewed on a case-by-case basis by the ARC).
b. The size, location, and form of awnings and exterior shades must be in scale with the window and should not dominate the architecture of the Residence.
c. Awnings proposed on front elevations or on side elevations at corner Residential Lots will be considered relative to their compatibility with the architecture of the Residence and the Community.
d. Awnings are not considered appropriate on certain elevation styles and on certain accent windows.
e. Temporary sun shades attached to the vertical face of the Residence, patio cover, or gazebo, such as rolls of bamboo, fiberglass, or reed, are not permitted.

12. Exterior Colors and Finishes.

a. Color is intended to act as a primary theme-conveying element and be reflective of the architectural styles.
b. Exterior colors of buildings shall match those applied by the original Declarant and/or comply with the color palette approved by the Board and available from the Association.
c. For any proposed modification of exterior material and any proposed modification of exterior color of the Residence, the following must be included:
    i. A color sample board and an elevation sheet with color chips attached clearly noting where colors are to be used.
    ii. All samples must be identified with manufacturer's name, color and/or number.
    iii. Color photographs of properties located on each adjoining side of the Residence including those across the street that face the Residence with the proposed color change.

13. Reflective Finishes.

No highly reflective finishes shall be used on exterior surfaces (other than surfaces of hardware fixtures), including the exterior surfaces of any of the following: roofs, all projections above roofs, doors, trim, pipes, solar panels, or equipment.

14. Solar Panels and Mechanical Devices.

Replacement or expansion of Solar Energy Systems installed by Declarant, if any, or if Declarant has not installed a Solar Energy System on a Residence, the installation of a new Solar Energy System by Owner, may be installed within the Community subject to prior written approval from the ARC.

a. **Submittal Requirements**. All Applications including Solar Energy Systems shall indicate within the applicable Plans and Specifications the location of any Solar Energy System panels on the roof of the Residence. As part of its review, the ARC will evaluate the appearance of the proposed Solar Energy System to ensure that said equipment and its proposed installation comply with the following:
    I. Integrated into the roof design of the building and flush with the existing roof slope, and hidden from view when possible.
    II. Solar panels located on top of roofs must conform with all Governmental Agency and fire authority regulations. In addition, to maintain the aesthetics and integrity of the roof, the panels must be setback a minimum of 2 feet from the outside perimeter of the roof.
    III. Solar collectors must be non-reflective in nature and frames must be colored to complement the roof, such as black or dark bronze in color.
    IV. Natural aluminum frames are prohibited.

V. Support solar equipment shall be enclosed and screened from view.

VI. All mechanical equipment exposed to the exterior shall be located in a manner that minimizes visual impact.

b. **Liability.** Neither the ARC nor the Board shall be liable to the Owner of a Solar Energy System for any approval or disapproval by the ARC or Board of any other Owner's Application for the installation of particular trees or shrubs on a Residential Lot adjacent to a Solar Energy System. The ARC and the Board shall not be responsible for any damage, loss or prejudice suffered or claimed on account of the approval or disapproval of the planting of any tree or shrub on another Residential Lot that blocks, interferes with, adversely impacts, damages, or otherwise renders a Solar Energy System less efficient than if the tree or shrub had not been approved by the Board or ARC. Owners who plant trees or shrubs on their Residential Lots that are adjacent to a residence with a Solar Energy System shall be responsible for compliance with all Applicable Laws, including without limitation the Solar Shade Control Act (California Public Resources Code Section 25982).

15. <u>Antennae and Satellite Dishes.</u>

These Architectural Guidelines are not intended in any way to impair the installation, maintenance or use of Covered Antenna (as defined below). These guidelines regarding Covered Antennas are not a part of a pre-approval submittal process as described in Article 8.2.9 of the Declaration; however, the ARC has the right to ensure that any Covered Antenna installed by an Owner is installed in accordance with the following guidelines.

a. **Definitions.**

i. "**Antenna**" - any device used for the transmission and receipt of video or audio services, including direct broadcast satellite (DBS), television broadcast, and multipoint distribution service (MDS), including antennas that have limited transmission capability which are designed to aid the user in selecting or using video programming. A mast, cabling, supports, guy wires, conduits, wiring, fasteners, or other accessories necessary for the proper installation, maintenance, and use of a reception antenna shall be considered part of the antenna.

ii. "**Covered Antenna**" - an Antenna covered by the FCC's Over-the-Air Reception Devices (OTARD) Rule.

b. **Antenna Size and Type**: Owners may install the following Covered Antennas in accordance with the architectural review process set forth in the Declaration and these Architectural Guidelines, provided that such rules do not unreasonably delay Covered Antenna installation, maintenance, or use; unreasonably increase the cost of Covered Antenna installation, maintenance, or use; or preclude reception of acceptable-quality signals from Covered Antennas.

i. Antennas designed to receive Direct Broadcast Satellite (DBS) service that are 39.4 inches (1 meter) or less in diameter.

ii. Antennas designed to receive Multipoint Distribution Service (MDS) that are 39.4 inches (1 meter) or less in diameter.

iii. Antennas designed to receive television broadcast signals, regardless of size.

c. **Location.**

i. Covered Antennas shall not encroach upon, or overhang into, any Association Property or any other Residential Lot.

ii. Covered Antennas shall be located in a place shielded from view from other Residences, from streets, or from outside the Community to the maximum extent possible. If Covered Antennas can receive acceptable-quality signals from more than one location, then Covered Antennas must be located in the least visible preferred location.

iii. If an installation cannot comply with the foregoing provisions because the installation would cause unreasonably delay, unreasonably increase the cost, or preclude reception of acceptable-quality signals, the Owner installing the Covered Antenna must ensure that the installation

location is as close to a conforming location as possible. The Association may request an explanation of why the nonconforming location is necessary.

d. **Installation and Removal.**

i. Covered Antennas shall be neither larger nor installed higher than is absolutely necessary for reception of an acceptable-quality signal.

ii. Covered Antenna Camouflaging

- Provided that paint will not degrade the signal, Covered Antennas shall be neutral in color or painted to match the color of the structure (wall, railing) near where they are installed.
- Covered Antennas installed on the ground and visible from the street or other Owners' Residences must be camouflaged, provided that such camouflage will not degrade the signal. A Covered Antenna preferably should be camouflaged by existing landscaping or screening. If existing landscaping will not adequately camouflage the Covered Antenna, then the Association may require additional camouflage. If the camouflaging will cause an unreasonable cost increase, then the Association has the option to pay for additional camouflaging and require its installation.
- Exterior Covered Antenna wiring shall be installed so as to be minimally visible and blend into the material to which it is attached.

e. **Safety**. Because the Association has a legitimate safety interest in preventing personal injury or property damage occurring due to improper or unsafe Covered Antenna installation, Owners must follow the following safety guidelines:

i. Covered Antennas shall be installed and secured in a manner that complies with all Applicable Laws, including applicable codes, safety ordinances, City and state laws and regulations, and manufacturer's instructions. If an Owner must obtain a permit in compliance with Applicable Laws, then the Owner shall provide a copy of that permit to the Association before installation. The purpose of this rule is to ensure that Covered Antennas are installed safely and securely, and to minimize the possibility of detachment and resulting personal injury or property damage.

ii. Unless the above-cited Applicable Laws, codes, safety ordinances, laws, and regulations require a greater separation, Covered Antennas shall not be placed within 5 feet of electrical power lines (above-ground or buried) and in no event shall Covered Antennas be placed where they may come into contact with electrical power lines. The purpose of this requirement is to prevent injury or damage resulting from Covered Antenna contact with power lines.

iii. Covered Antennas shall not obstruct access to or exit from any doorway or window of a Residence, walkway, ingress or egress, electrical service equipment, water shut-off valves, or any other areas necessary for the safe operation of the Community. The purpose of this requirement is to ensure the safe ingress and egress of Owners, Invitees, guests and Management Company personnel.

iv. To prevent electrical and fire damage, Covered Antennas shall be permanently and effectively grounded.

v. To prevent detachment during a storm, Covered Antennas shall be installed to withstand wind speeds of at least 70 mph.

16. <u>Exterior Lighting.</u>

a. New exterior light fixtures, such as decorative wall fixtures, must be compatible with the design of the Residence. They must be simple in design and color and should be compatible with the existing light fixtures.

b. Pathway solar lighting is acceptable but must be approved by the Architectural Committee.

c. For specific landscape lighting requirements refer to Section IV.F.

17. <u>Landscape.</u>

The landscape plays a significant role in establishing the overall Community character and value. The landscape objective for the Community is to create a cohesive community framework. The desire is to ensure that the landscape and hardscape improvements (i) are of the same high quality as the Residences and Association Property, and (ii) aesthetically and horticulturally compatible to the design of the Community.

The Declarant has installed the Association Property landscaping and the Association is responsible for the maintenance thereof. With respect to any landscaping to be installed by an Owner on a Residence, the following provisions shall apply:

1. Landscape Standards.

a. Plans for side and rear yard landscaping must be submitted to the ARC at the same time for initial landscaping review.
b. Proposed changes to the front yard landscape require prior approval from the Architectural Committee.
c. No changes are permitted to the parkways in front of the lots.
d. All plans must be in accordance with the community's Fire Protection Plan.
e. Plants must not encroach on walkways or Public Streets. Handicap access features at sidewalks and driveways shall not be modified or removed.
f. Irrigation lines must be subterranean unless they are "drip" systems. The irrigation system shall be designed and installed to irrigate different landscape zones (e.g., sun, shade, lawn and shrubs).
g. Appropriate drainage shall be installed so as to be directed to the street, and to prevent run-off onto adjacent Residential Lots, Association Property or other areas. There should be a slope / drainage of 2% away from the building, and water should be collected in a landscape drainage system.
h. Sprinklers must be adjusted so as to spray landscaped areas only. Spray irrigation heads shall not spray on walls of Residences, block walls or fences. Irrigation controllers shall be set to apply the correct amount of irrigation and avoid runoff to adjacent lots, including Residential Lots and Association Property.
i. Applications for landscape must include:
    I. Listing of plant material and size, including height of trees at maturity. Trees should be kept at least 5 feet from property lines and have non-invasive and non-surface root systems.
    II. Site plan showing house (plot plan) and location of the proposed landscaping (plant materials) shall be included in the Application.
    III. Non-retaining planters and walls shall not exceed 2 feet in height.
    IV. Hardscape, such as concrete walkways, pavers and patios, decks, patio covers with elevations (side views) and construction detail shall be indicated in the Application's Plans and Specifications. Colors of decorative concrete, brick, stone, or block must be specified. Earth tone, neutral colors are required. No vivid colors are allowed. Walkways must be a minimum of 4' wide.
    V. Drainage plan, including location of drain inlets, water flow direction, and outlets must be identified and included in the Application's Plans and Specifications. All water shall be directed away from the Residence.

2. Grading.

A. The grade adjacent to an existing Residence must remain at existing grade for 12 inches clear of the wall.
B. The grade may not be lowered or raised in excess of 8 inches within the Residential Lot.

3. Drainage.

A. There shall be no interference with the established drainage patterns, level, or grade over any Residential Lot, or Association Property unless an adequate alternative provision is made for proper drainage and written approval is obtained from the ARC.
B. Failure to make adequate provisions for proper drainage in the event it is necessary to change the established drainage over Owner's Residential Lot could cause major problems and result in imminent danger to person(s) or property, including other residences.
C. If you alter drainage, or if you install Improvements in such a way as to alter the drainage, you, not the Association, will be responsible for any resulting consequences, claims, losses or damages in any way related to drainage.
D. The drainage pattern established with the original grading of the Residential Lot must be maintained. No drainage will be permitted onto Association Property slopes, landscaping, or adjacent lots.
E. All Residential Lots' construction/hardscape surfaces shall have positive surface drainage of one percent (1%) minimum.
F. All landscape areas shall have positive surface drainage of two percent (2%) minimum.
G. All surface drainage shall be directed away from building walls, top of slopes and perimeter walls.
H. All on Residential Lot drainage features and systems must adhere to all applicable codes.
I. Modifications cannot allow for the sheet flow if water to adjacent lots.

4. Flatwork.

A. All paving materials must be compatible with the Residence architectural style and exterior elevation materials.
B. Proposed driveway replacement materials must be consistent with the Residence architecture and must be submitted to the ARC for review.
C. Declarant provided entry walkway may be replaced with an enhanced paving material that is consistent with the Residence architecture. Any pavers must be set in sand to support stability.

18. <u>Walls, Fences and Gates.</u>

A. Fence style, materials, and finished color must be compatible with the Community.
B. Placement of the fence and support structures may not interfere with adjacent Association sprinkler systems, nor shall fences be constructed over irrigation lines.
C. Structural framing or an unfinished side or a fence varying from existing fence standards shall not be exposed to any public street, sidewalk, walkway or neighboring lot.
D. Material for side yard fencing will be given special consideration depending on its exposure to the neighborhood.
E. Fences are required to surround pool and spa areas. Minimum height requirements are established by Applicable Laws and government codes.
F. Under no circumstances shall any Owner remove or alter in any way walls and fences that have been erected by the Declarant without the prior written consent of the ARC.
G. At no time shall an Owner attach to, affix, or hang any item on or over any such fences or walls without ARC approval.
H. Existing masonry pilasters, walls and gates shall not be removed, reconstructed or modified as to structure, finish or color, without prior ARC approval.
I. Retaining walls are subject to the approval of the ARC. Such approval shall be based on the aesthetic appearance of the wall only and shall not be deemed to warrant or approve in any manner the engineering or structural design of the wall. The maximum permitted height of retaining walls is 2 feet and retaining walls are not permitted to be located adjacent to the existing Residence.
J. At raised planter wall (retaining wall) conditions, soil level may not be raised against existing perimeter walls without the addition of a 4-inch-wide retaining flash wall, as the perimeter walls

are not structurally designed for retaining conditions. A retaining wall must be 18 inches clear of existing perimeter walls and not exceed 2 feet in height.

K. All walls and pilasters located in the front yard area shall be set back 3 feet minimum from the back of sidewalk and accented with plant material.

19. <u>Decks, Patio Structures, Sunshades and Gazebos.</u>

A. Materials shall be harmonious with applicant's Residence.

B. In designing the deck or patio, a minimum of intrusion upon neighbors' privacy should be given every possible consideration.

C. Adequate drainage must be installed to prevent standing water and run-off onto adjacent properties. Drainage must be directed to the street.

D. Wooden decks are to be stained and/or sealed to preserve natural color or painted to match existing Residence trim.

E. Railings are acceptable.

F. Application for a patio or deck must include the following information:
   I. Site plans indicating location of patio or deck in relation to existing house.
   II. Listing of materials colors and finishes.
   III. Drainage provisions and flow or run-off
   IV. Dimensions
   V. Elevation drawings

G. Patio covers should not exceed 10 feet in height for a flat type structure, or 12 feet in height for a sloped pitched structure.

H. Covered or unenclosed patio covers and trellises attached to the main structure may be located no closer than 3 feet to a side yard, 5 feet from the rear property line and 7 feet from the rear property line when adjacent to a street when the entire structure is in the rear yard.

I. The patio or trellis shall not cover more than 60% of the rear yard.

J. Metal patio covers are subject to the approval of the ARC, which must be obtained prior to installation.

K. Unacceptable construction materials for structures in this section shall include the following:
   I. Corrugated plastic
   II. Corrugated fiberglass
   III. Plastic webbing, split bamboo, reed or straw-like materials
   IV. Asphalt
   V. Metal support posts for patio covers.
   VI. The above unacceptable materials are not all inclusive.

J. Application for patio covers must include:
   I. Location of cover in relation to house
   II. Materials and color
   III. Dimensions
   IV. Elevation drawings
   V. Open wood beam structures shall be painted a color that is compatible with the Residence color.
   VI. All vertical support structures or columns, fascia, lattice, trim, beams, etc. must be setback a minimum of 3 feet from side yard, 5 feet from the rear property line and 7 feet from the rear property line when adjacent to a street when the entire structure is located in the rear yard. All measurements are calculated at the outermost part of the structure, including the overhang, to perimeter walls / property lines. Substantial landscape screening is required.
   VII. Columns may be masonry or wood. Wood columns must appear to be substantial, 6 inches x 6 inches minimum.

VIII. Generally, the square footage of patio covers will be reviewed in relation with the square footage of the yard of the Residential Lot. The intent is to retain an attractive Community appearance with a balance of buildings and open space. Some yards are not conducive to patio cover construction and will be considered accordingly. All structures will be reviewed on a case-by-case basis by the ARC. The following conditions may be considered:

- Visibility of the structure from the neighboring lot and Association Property.
- Screening of the structure with plant material.
- The balance of hardscape to softscape.
- The size of structure in relation to the size of the yard.

20. <u>Freestanding Vine Trellises.</u>

A. Freestanding vine trellises shall not exceed 8 feet in height and shall have a 1 foot planting area between the posts and the perimeter walls for vine planting. The length and width shall be reviewed on a case-by-case basis.

B. Vine trellises shall be ornamental iron or wood construction.

C. The construction detail and elevation is required for ARC review. Note on the detail that the wood members must be stained/painted to match the Residence or the architectural eaves of the Residence. Ornamental iron must be finished a dark color.

D. Prefabricated vine trellises will be considered. The Application should include a catalog cut or photograph of such trellises.

E. Espaliers must be setback 1 inch from perimeter walls and not exceed the height of the perimeter wall.

21. <u>Fountains / Garden Art / Statuary.</u>

A. Fountains that are consistent with the overall Community theme should be considered as an accent feature to the main Residence. Where those elements are visible from the street and/or Association Property, their size and scale should be consistent with other proposed hardscape elements. Statuary and sculpture elements associated with fountains shall not exceed the height of adjacent privacy walls and fences and should be softened with plant materials.

B. The subject matter of statuary and sculpture elements associated with fountains shall be appropriate for their residential context. Elements that could reasonably be considered to be offensive are not permitted.

C. The color of fountains should complement the primary Residence structure. Bright colors and reflective surfaces are not permitted

D. The quality and quantity of fountains, statuary and sculpture elements are subject to review and approval of the ARC.

E. Fountains located in the rear yard of a Residential Lot shall not exceed the adjacent fence or wall height, must not block a view and must be set back a minimum of 5 feet from the back of the sidewalk and/or side property lines. Fountains located in the front yard of a Residential Lot shall not exceed 2 feet in height and must be set back a minimum of 5 feet from the back of the sidewalk and/or side property lines. Fountains are more appropriately located close to the primary Residence and are not permitted to be placed in a location where they detract from the overall appearance of the street.

F. Built-in water features and Freestanding (self-contained units) shall be set back a minimum of 5 feet from perimeter walls or the adjacent Residence wall.

22. Fireplaces, Firepits, Exterior Fires.

A. If the fireplace (including the spark arrestor) extends above the adjacent wall or fence line, a setback equal or greater than the height of the fireplace is required and the structure shall be adequately screened from view by other Residential Lots and Association Property. Depending on the Residential Lot configuration in relation to neighboring Residential Lots and Association Property, the setback can be lowered, provided that the screening materials can be installed and appropriately maintained in the space. The minimum setback for barbecues, fireplaces and fire pits is 5 feet or the City required setback standards, whichever is less.

B. Freestanding outdoor fireplace chimneys shall not exceed 8 feet in maximum height. The fireplace must be set back 3 feet from perimeter walls to provide a planting area for screening.

C. Fireplace chimneys attached to patio covers are not permitted.

D. Exterior fire pits, barbecues and fireplaces shall be limited to gas burning type with an electronic starter. Fireplaces must be designed to use natural gas. Wood burning fireplaces are not permitted.

E. Fire pits shall be setback 3 feet from perimeter walls and must be natural gas.

F. The structures shall be screened with landscaping.

G. The fireplace must match the architectural style of the Residence.

H. The back of the fireplace structure must match the Residence.

I. Owner shall obtain any permits required by the City or other Governmental Agency for any fire pits, barbecues and fireplaces.

J. No fire pits, barbecues, fireplaces, barbecue islands, permanent barbecue structures or outdoor kitchens shall be located in the front yard of a Residential Lot.

23. Ponds.

Applications for proposed decorative ponds must be submitted with the location, dimensions, and a picture or diagram including the intended appearance, material and color. A piping diagram of the re-circulation system and drainage method must be included. Ponds shall not be constructed on a property line or attached to any common wall or fence.

24. Barbecue Islands and Outdoor Kitchens.

A. Barbecue islands and other types of permanent barbecue structures and outdoor kitchens shall maintain a minimum setback of 5 feet between the burning element and the property line, provided the structure is not visible above the adjacent wall or fence.

B. If the structure is visible above the wall or fence line, it shall be screened with landscaping.

C. Owner shall obtain any permits required by the City or other Governmental Agency for any barbecue islands and outdoor kitchens.

D. No fire pits, barbecues, fireplaces, barbecue islands, permanent barbecue structures or outdoor kitchens shall be located in the front yard of a Residential Lot.

E. All materials shall be consistent with the Residence architecture and in scale with the size of the yard of the Residential Lot.

25. Play Equipment.

Basketball backboards are not permitted. Portable basketball hoops must be returned to garage or placed behind side yard fence when not in use.

26. Irrigation.

The following irrigation standards apply to all Residences within the Community:

1. All landscape areas are to be irrigated.
2. Irrigation systems shall be tailored to the specific site and landscape situation. Important considerations of the design are environmental conditions such as sun and shade, soils, terrain, percolation rates, erosion control, and wind.
3. Irrigation systems shall be designed to apply water in an efficient manner and provide adequate coverage without excessive run-off into storm drains or over sidewalks or adjacent property.
4. Irrigation systems should be designed and maintained to avoid overspray onto adjacent Residences or property.

27. Planting.

1. The Association Property and HOA Maintained Public Property trees, shrubs, groundcover and turf provided by the Declarant are to be protected in-place during any construction and replaced in kind and size by the Association at the Owner's expense if damaged. Owner shall note on the landscape improvement Plans and Specifications the following: "All existing Association Property and parkway landscape shall be protected in place during all phases of construction."

2. No trees, shrubs, or other plants shall be installed until Plans and Specifications have been approved by the ARC. The Plans and Specifications must show the proposed species, locations and installed sizes. The Plans and Specifications must indicate whether any Solar Energy Systems exist on any properties that border the Owner's Residential Lot. If any such Solar Energy Systems exists on an adjoining property, the location, type and future height of any proposed tree or shrub may be subject to limitations consistent with the requirements of the Declaration and the restrictions, including without limitation the Solar Shade Control Act, referenced therein. Owners may be required to submit a solar shade study, if applicable.

3. The ARC shall have the right, but not the obligation, to require the Owner to remove, trim, or prune any tree, shrub, or plant which in the reasonable opinion of the ARC, unreasonably impedes the passage of light or air of any Residential Lot or Association Property and to shape and thin trees for wind resiliency and appearance.

4. In addition to selecting landscape plants based upon aesthetic characteristics, consideration shall be given to relative drought-tolerance, solar aspect, and soil type within the Community.

5. Trees with invasive root systems and deciduous / flowering / fruiting trees that drop excessive litter should not be proposed adjacent to Association Property or another Residential Lot.

6. All trees planted within 5 feet from perimeter walls and/or adjoining Residences must utilize a root barrier device.

7. Owner assumes all liability and responsibility for any root damage from trees planted in their yards (including but not limited to damage to walls, structures, utility lines, drainage and adjacent neighbor Improvements).

8. Owner agrees to provide routine maintenance for all trees including, but not limited to, annual pruning and lacing. If the ARC deems any trees a nuisance, the Owner shall bear the expense of tree removal.

9. Shrubs and vines are encouraged to be planted to screen or visually enhance blank wall areas.

28. Synthetic Turf.

Synthetic turf grass is acceptable in private yards, in accordance with the following guidelines:

1. A minimum twelve inch by twelve-inch (12" x 12") sample and specification sheet with warranty shall be submitted for consideration, unless pre-approved product is specified. The following synthetic turf products are pre-approved:
   A. (IST) Imperial Synthetic Turf
      - California Royal 89

   B. Boone Action Turf
      - Irvine Fescue One
      - Base Hit 55
      - Base Hit 85

      Boone Action Turf (B.A.T.)
      1700 N. Main Street, Orange, CA 92865
      (888) 589-8873
      booneactionturf.com

   C. Pro Green Synthetic Grass
      - Natural Real 80
      - Natural Real 60
      - Natural Real 50

      AmeriTurf Systems
      11710 Chisholm Court, Santa Clarita, CA 91390
      (888) 922-3083
      progreen.com

   D. Tiger Turf
      - Diamond Pro Fescue
      - Diamond Pro Spring
      - Diamond Supreme Fescue
      - Diamond Supreme Spring

   Synthetic Grass Warehouse
   1400 N. Daly Street, Anaheim, CA 92806
   (800) 730-2675
   syntheticgrasswarehouse.com

   The foregoing pre-approvals are not an endorsement of the listed products or manufacturers, and neither the ARC, the Board of Directors, their designated representatives, agents or members, nor the Declarant, assume any liability or responsibility, therefore.

2. Synthetic turf must be replaced when it no longer looks like natural turf due to wear, damage, or discoloration.

29. Exterior Lighting.

1. Landscape lighting shall be low-voltage only.

2. All lights must be compatible with the house design color.

3. The up lighting of trees and shrubs is encouraged to provide illumination to the outdoor garden space. No exposed wires or cables are permitted.

4. Mercury vapor lamps or lamps that emit light of a similar character, exposed fluorescent lamps, flashing lights, color lights, unshielded exterior lights, and lights which result in excessive glare are not permitted.

5. Path lighting is acceptable but should be minimized. Path lights shall cast the light downward.

6. Minimal area lighting, post lights, security lights and/or flood lights are permitted but require Architectural Committee approval.
7. The ARC and the Association reserve the right to require that the fixtures be disconnected if they cause an unreasonable glare or illumination upon property outside of the Owner's Residential Lot.

30. Miscellaneous.

1. Speakers.

Speakers are permitted but must be installed in such a way as to mitigate noise audible from surrounding residences and may not be used past 10:00 p.m.

2. Thematic landscape features.

Thematic landscape features with overly distinctive colors, forms, or materials that establish an independent theme that detracts from the overall street scene, such as glass block, mirror balls, pink flamingos, rock gardens, gravel yards, boulders in turf areas, waterfalls, fountains, concrete statues, railroad ties and split rail fencing are not permitted in areas visible from Association Property or Public Streets.

3. Exterior Colors.

Exterior colors of fences, walls and structures as originally applied and exterior colors pre-approved by the ARC for new construction, additions, or alterations, shall not be changed or altered without prior ARC approval.

4. Flags and Flag Poles.

Submittal Requirements. Flags of the United States need not be submitted for ARC approval provided that they conform to the following guidelines. However, the Association reserves its rights set forth in the Declaration to prohibit Improvements that may pose a health or safety risk in the Community.

A. Guidelines.
- Owners may display a flag of the United States made of fabric, cloth or paper displayed from a house-attached flagpole within a Residential Lot.
- Owners may not display a depiction or emblem of the United States flag made of lights, paint, roofing, siding, paving materials, flora or balloons or any other similar building, landscaping or decorative component.
- All other flags must be submitted to the ARC in accordance with the procedures set forth in the Declaration and these Architectural Guidelines.

B. Non-commercial flags are permitted with the following requirements:
   I. The flag brackets shall be compatible with the color and scale of the Residence.
   II. Flags may not exceed 15 square feet in size.
   III. Flags must be maintained continually in good repair.
   IV. House-attached flagpoles shall be no longer than 6 feet in length.
   V. Flagpoles must be removed when a flag is not displayed.

C. Freestanding flagpoles are not permitted.

31. Outdoor Storage.

A. Outdoor storage containers are not allowed unless fully screened from view from the exterior of the Residential Lot and stored in the rear yard of the Residential Lot.

B. Storage sheds and green houses are only permitted in private yards enclosed by masonry walls. The top of the structure must be below the top of the Residential Lot wall and screened with landscaping approved by the ARC.

32. Doghouses.

Doghouses and other pet enclosures are only allowed in rear yard of the Residential Lot and must be screened from view from the exterior of the Residential Lot.

33. Clotheslines.

Clotheslines are not permitted on a Residential Lot.

34. Landscape Accessories.

Thematic landscape accessories on the front porches of a Residence or within the Association Property (e.g. sundials, statuettes, chimes, etc.) are not permitted.

Special Notes.

1. Owners are responsible for maintaining all slope areas on their Residential Lot. Owner must not interfere or modify any maintained slopes, including but not limited to the construction of any structure. If an Owner's Lot is adjacent to or near the bottom of a slope or if drainage otherwise flows into Owner's property, then each Owner accepts such drainage on their property and shall not obstruct the flow of that drainage, divert it away from their property or otherwise alter the flow of that drainage in any manner that will have any effect on an adjacent Residence, Residential Lot, or Association Property.

2. It is important that Improvements such as concrete slabs, decks, planters and walls be designed by qualified soils and structural engineers to compensate for expansive soil conditions and slope creep. Owners are solely responsible for Residential Lot irrigation, landscape maintenance and control of burrowing animals on all landscaped areas on their Residential Lot.

3. Air conditioning units are not to be moved without ARC approval.

Section V: General Conditions of Approval

The following shall be conditions of any ARC approval and shall be deemed incorporated by reference into all Plans and Specifications and ARC approval. It shall be the responsibility of the applying Owner to ensure that these conditions are enforced upon all persons or firms used, engaged or employed in carrying out any operation or trade in conjunction with the Improvement. The ARC may condition its approval of Plans and Specifications with such changes it deems appropriate and may require submission of additional Plans and Specifications or other information or materials prior to approving or disapproving an Application or Plans and Specifications.

A. Occupational Safety and Health Act ("OSHA") Compliance.

All applicable OSHA regulations and guidelines and all other Applicable Laws must be strictly observed at all times.

B. Signs.

No signs shall be displayed on any Residential Lot other than a sign advertising the property for sale as permitted by the Declaration. (Refer to the Association Rules for specific requirements.) This limitation applies to tradesmen's, contractors' and installers' signs of any type, including the signs identifying the Residential Lot as the site of their activities or operations. The Declarant is excluded from these Architectural Guidelines.

C. Hours of Operations.

As per the City of Tracy Noise Ordinance, all operations shall be carried on between the hours of 8:00 a.m. and 5:00 p.m. on Monday through Saturday. No construction shall be permitted on Sundays or federal holidays.

D. Temporary Structure.

No structure of a temporary character will be permitted to remain on any Residential Lot without the written approval of the ARC.

E. Sanitary Facilities.

Each Owner shall be responsible for providing adequate sanitary facilities for their construction workers. Portable toilets or similar temporary toilet facilities shall be located only on the Residential Lot itself, setback 5 feet from the side yard property line, or in a location approved by the ARC.

F. Debris Removal.

The Residential Lot is to be cleaned at least once a day during construction. Debris must be removed from the site or placed in a debris bin. Refer to Water Quality Management Best Management Practice Guidelines, (Form G), attached to these Architectural Guidelines.

G. Unsightly Items.

All rubbish and unsightly material or objects of any kind shall be regularly removed from the Residential Lot and will not be allowed to accumulate thereon. Removal shall be made weekly, preferably on Friday, and rubbish will not be allowed to accumulate on streets or Association Property. The Owner will be responsible for the cost of any trash cleanup work performed by the Association due to Owner's failure to adhere to these requirements. Owners are prohibited from dumping, burying, or burning trash anywhere within the Community. Concrete trucks washing out their spill pans before leaving the construction site shall do so only on the Residential Lot and with adherence Refer to Water Quality Management Best Management Practice Guidelines, (Form G)

H. Streets and Sidewalks.

No construction debris or material is permitted to remain on the Community's streets or walkways. All items of such nature must be stored on the Residential Lot. In the event that any materials are delivered or deposited on the streets, walkways or in Association Property, the Owner will be held responsible for the costs involved in cleaning and/or restoring the affected Association Property, streets and walkways to their original condition.

I. Street Trees and Parkway Improvements.

Street trees shall be protected in place in a healthy condition during all phases of construction. All parkway irrigation and planting improvements shall likewise be protected in place in a functional and healthy condition during all phases of construction.

J. Construction Equipment.

Trucks, concrete mixers, trailers, trash bins, compressors, and other types of construction equipment, as well as private vehicles of construction crew members, shall be parked only in ARC designated areas. The Owner shall be financially responsible for any equipment removal or necessary repairs required by the ARC due to the breach of this provision.

K. Building Permits.

Building permits may be required for certain Improvements or changes. The applicant shall obtain ARC approval of any Improvements requiring a building permit prior to requesting such permit from the City or other Governmental Agency.

L. Damage to Association Property or Association Maintenance Areas.

An Owner shall be responsible for any damage to the Association Property or Association Maintenance Areas caused by an Owner or such Owner's Invitees, or any other persons deriving their right to use the Association Property or Association Maintenance Areas from the Owner or such Owner's family, tenants or guests, as set forth in the Declaration.

M. Effect of Approval.

Approval of Plans and Specifications is not authorization to proceed with Improvements on any property other than the Residential Lot owned by the applicant.

N. Building Code Requirements.

It shall be the responsibility of the Owner to ensure that proposed modifications are consistent with applicable building code requirements and other Applicable Laws.

O. Requirements for Contractors, Subcontractors and any Other Workers.

1. **Insurance and Contractors License**. Each Owner shall ensure that all contractors, subcontractors, or any other person or entity who/which performs work on or within the Community, including without limitation the interior of any Residence or any Residential Lot, shall provide proof of insurance, proof of valid workers' compensation insurance, a California State Contractors License (if applicable) and a Business License (if applicable) to the ARC. The Association shall be named as an additional insured on the Certificates of Insurance for the period of time the work is in progress, which must be submitted to the Association together with the deposit, if required, before work may commence.

2. **Owner Responsibility.** Each Owner is responsible for any violations by such Owner's contractor or subcontractors of the Architectural Guidelines, the Association Rules and the Declaration.

3. **Damage.** Any damage caused by contractors or sub-contractors to any Association Property, Association Maintenance Areas, Residence or Residential Lot is the Owner's responsibility. Any damage must be reported immediately to the Management Company. The Owner will be held liable for the actions of his/her contractors, subcontractors and/or workers and the Owner will be responsible for any costs of repair incurred by the Association in accordance with the Declaration.

4. **Working Hours.** Working hours for any Improvements are limited to Monday through Saturday, 8:00 a.m. to 5:00 p.m. or such hours as are permitted by the City, whichever are more restrictive. No work is allowed on Sundays or on federal or state holidays. Workers may access the Community thirty minutes before the applicable "Working Hours," but may not make any disruptive noise until "Working Hours" begin. Painting that does not disrupt others and work that does not create disturbing noise, vibrations or odors is not subject to the "Working Hours" limitation.

5. **Parking of Vehicles.** Contractors must park vehicles in accordance with the Association Rules and any other requirements established by the Association.

6. **Conduct by Workers.** Workers are not allowed to bring their pets within the Community. Workers are prohibited from creating nuisance noise unrelated to the construction work. All workers must wear shoes, pants or shorts and shirts at all times. No workers may use the power from the Association Property or Association Maintenance Areas.

7. **Stopping Work.** The Association has the right to stop any work that is in violation of these Architectural Guidelines, creates a fire or safety hazard, or interferes with activities in the Association Property or Association Maintenance Areas.

8. **Equipment.** Workers are prohibited from leaving their equipment on the Association Property. The Association is not responsible for the disappearance or theft of any tools, equipment or materials left in the Association Property.

9. **Construction Materials.** All construction materials must be stored within the Owner's Residential Lot. Any construction materials that are delivered and deposited on the Public Streets must be relocated to the Owner's Residential Lot. The Owner who is making the Improvements shall be responsible for removing all debris and maintaining all portions of the Association Property affected by such Owner's construction activities, including any Public Street and walkways, in a clean and attractive condition. The Board has the right to levy Compliance Assessments against the Owner who is making the Improvements to recover the cost of cleaning or restoring any Association Property to the condition that existed prior to the commencement of such Improvements pursuant to the Declaration and the Bylaws, to the extent that such Owner fails to do so in accordance with this provision.

10. **Construction Equipment.** The Owner who is making Improvements shall be responsible for ensuring that construction equipment such as trucks, concrete mixers, trailers, trash bins, and compressors shall not be parked or placed on the Community's streets for an unreasonable amount of time. Any damage to the Public Street, curbs, landscaped areas, fences, walls or other Association Property improvement shall be repaired at the Owner's expense. If such expenses are not promptly repaid by the Owner's to the Association, the Board shall, after Notice and Hearing, levy a Compliance Assessment against such Owner for reimbursement.

11. **Violation of Rules.** The Board has the right to levy against the Owner who is making such Improvements, Compliance Assessments as a disciplinary measure for a violation of the foregoing provisions and for reimbursement of any costs incurred by the Association in the repair of damage for which such Owner, or such Owner's agents or contractors was allegedly responsible, as set forth in the Declaration and the Association Rules.

P. Dust and Noise.

The Owner shall be responsible for controlling dust and noise from any construction on his or her Residential Lot.

Q. Excavation.

Excess excavation materials must be hauled away in a legal manner and must be properly protected with plastic and sand bags so that loose soils will not wash down into the Community's storm drains.

R. Restoration or Repair of Other Property Damaged.

Damage to other property, including without limitation, other Residential Lots, Association Property, or other Improvements shall be repaired or restored promptly at the expense of the Owner of the Lot where the construction activity is taking place. Upon completion of construction, the Owner shall clean the construction site and repair or restore all damaged property, including without limitation, restoring grades, and repairing streets, curbs, driveways, sidewalks, drains, culverts, ditches, signs, lighting, fencing, irrigation and planting.

S. Maintenance of Improvements.

The repair and maintenance of any work or Improvements will be the responsibility of the installing Owner and subsequent Owners of the Residential Lot.

T. Drainage.

There shall be no interference with the originally installed rain gutters, downspouts, subterranean drain line(s), or other drainage systems (whether surface or subterranean) or any other interference with the established drainage pattern over any of the Residential Lot or Association Property. All on Residential Lot drainage systems shall be connected to the existing drain line from the in-street storm drain to one or several roof gutter down spouts. The Owner shall protect all such existing drain lines in place.

U. Workmanship.

The quality of new Improvements shall match the quality of the existing structures. Any work deemed by the ARC to be of inferior quality shall be reworked or removed and the building restored by the Owner to its original condition prior to commencement of the work by the Owner. If the Owner refuses to rework or remove and restore as called for above, the ARC shall request the Board of Directors to cause such rework, removal or restoration and the cost thereof shall be a Compliance Assessment against the Owner as provided in the Declaration.

V. Enforcement.

Failure to obtain the necessary prior approval from the ARC prior to installation of any Improvement constitutes a violation of the Declaration and these Architectural Guidelines and may require modifications or removal of work at the expense of the Owner.

W. Violations.

All Owners have the right and the responsibility to bring to the attention of the ARC any violations of the Declaration and these Architectural Guidelines.

X. Amendments.

These Architectural Guidelines, along with the provisions set forth in the Declaration for the Community, form the basis and criteria for evaluation of Applications, including Plans and Specifications, submitted for review and approval by the ARC. The Architectural Guidelines may be amended or supplemented from time to time as provided for in the Declaration.

Y. Conditions Not Covered.

With respect to any proposed Improvement or other condition not specifically addressed in these Architectural Guidelines, the ARC shall apply these Architectural Guidelines in the manner that is most consistent with the original architectural and landscaping character established by the Declarant for the Community where the Owner proposes to construct the Improvements, so as to preserve aesthetic harmony between the proposed Improvements and the existing Improvements within the Community.

Z. Inapplicability to Declarant.

In accordance with the Declaration, nothing in these Architectural Guidelines shall apply to any Improvements installed or repaired by Declarant or limit the rights of the Declarant to construct Improvements on any Residential Lot or Association Property.

AA. Contractor BMPs.

See Water Quality Management Best Management Practice Guidelines, (Form G)